

directed to provide a lodestar figure for any hearing on final approval.

Similarly, litigation costs and the requested representative payment of \$10,000 total for plaintiffs will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The issue concerning the cy pres recipient has been resolved. Accordingly, the Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. As of March 1, 2026, this matter is assigned for all purposes to Department 16, the Honorable Benjamin Reyes. The hearing on the motion for final approval will be held in that Department. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

22. 9:00 AM CASE NUMBER: C25-01327

CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.

***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**

FILED BY:

TENTATIVE RULING:

A declaration attaching a proposed answer was filed and served before the hearing on January 29, 2026. Accordingly, the motion to set aside default is granted, in conformance with the Court's tentative ruling issued January 28, 2026. Defendant is to file the proposed answer no later than ten days after notice of entry of this order.